

25STCV17960 25STCV17960

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-27

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Case Number: 25STCV17960 Hearing Date: August 27, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:55 PM on August 26, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 26, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

This

is a Lemon Law action based on an Engine Defect.

Defendant

FCA US, LLC moves to for sanctions against Plaintiff pursuant to Code Civ.

Proc. § 871.26(j).

TENTATIVE RULING

Defendant FCA US, LLC's motion for sanctions against Plaintiff's counsel is GRANTED in the mandatory amount of \$1,500. Sanctions are to be paid to Defendant's counsel within 15 business days.

ANALYSIS

Motion For Sanctions

The Court

has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendant

FCA US, LLC moves to for sanctions against Plaintiff pursuant to Code Civ. Proc. § 871.26 (j) due to Plaintiff's failure to timely serve the mandatory initial disclosures within 60 days after the filing of Defendant's responsive pleading, as required by section 871.26, subdivision (b) and failed to provide complete information or the required documents.

(b) Within

60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).

(Code Civ. Proc. § 871.26(b).)

On

October 22, 2025, Defendant filed a demurrer and motion to strike to the Complaint. As such, Plaintiff had until Monday December 22, 2025^[1] to serve initial disclosures and documents. On December 22, 2025, Plaintiff served initial disclosures, with no document production. (Declaration of Armando Lopez, ¶ 4; Exh. A.)

Although

Plaintiff's initial disclosure was timely, the failure to provide documents did not comply with Code Civ. Proc. § 871.26(b), (f). In the Reply, Defendant indicates that Plaintiff still has not produced the required documents or provided all information mandated by § 871.26(f) & (g). Plaintiff has not demonstrated good cause for failure to provide documents specified in Code Civ. Proc. § 871.26(f). These are documents which the client should have provided to counsel as part of the intake process, and which counsel should have been prepared to produce before filing suit or soon thereafter.

Code

Civ. Proc. § 871.26(j)(1) provides:

(j) Unless

the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A

one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(Code Civ. Proc. § 871.26(j)(1).)

Defendant's

request for sanctions against Plaintiff's counsel is GRANTED in the mandatory amount of \$1,500. (Code Civ. Proc. § 871.26(j)(1).) Sanctions are to be paid to Defendant's counsel within 15 business days. (Id.)

[1] The 60th

day was Sunday December 21, 2025.